

2 Parental responsibility for children

The Family Court Practice (The Red Book) > Part II Statutes > Children Act 1989 > Part I Introductory

(1) Where a child's father and mother were married to, or civil partners of, each other at the time of his birth, they shall each have parental responsibility for the child.

(1A) Where a child—

(a) has a parent by virtue of [section 42](#) of the Human Fertilisation and Embryology Act 2008; or

(b) has a parent by virtue of section 43 of that Act and is a person to whom [section 1\(3\)](#) of the Family Law Reform Act 1987 applies,

the child's mother and the other parent shall each have parental responsibility for the child.

(2) Where a child's father and mother were not married to, or civil partners of, each other at the time of his birth—

(a) the mother shall have parental responsibility for the child;

(b) the father shall have parental responsibility for the child if he has acquired it (and has not ceased to have it) in accordance with the provisions of this Act.

(2A) Where a child has a parent by virtue of [section 43](#) of the Human Fertilisation and Embryology Act 2008 and is not a person to whom [section 1\(3\)](#) of the Family Law Reform Act 1987 applies—

(a) the mother shall have parental responsibility for the child;

(b) the other parent shall have parental responsibility for the child if she has acquired it (and has not ceased to have it) in accordance with the provisions of this Act.

(3) References in this Act to a child whose father and mother were, or (as the case may be) were not, married to, or civil partners of, each other at the time of his birth must be read with [section 1](#) of the Family Law Reform Act 1987 (which extends their meaning).

(4) The rule of law that a father is the natural guardian of his legitimate child is abolished.

(5) More than one person may have parental responsibility for the same child at the same time.

(6) A person who has parental responsibility for a child at any time shall not cease to have that responsibility solely because some other person subsequently acquires parental responsibility for the child.

(7) Where more than one person has parental responsibility for a child, each of them may act alone and without the other (or others) in meeting that responsibility; but nothing in this Part shall be taken to affect the operation of any enactment which requires the consent of more than one person in a matter affecting the child.

(8) The fact that a person has parental responsibility for a child shall not entitle him to act in any way which would be incompatible with any order made with respect to the child under this Act.

(9) A person who has parental responsibility for a child may not surrender or transfer any part of that responsibility to another but may arrange for some or all of it to be met by one or more persons acting on his behalf.

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- (10) The person with whom any such arrangement is made may himself be a person who already has parental responsibility for the child concerned.
- (11) The making of any such arrangement shall not affect any liability of the person making it which may arise from any failure to meet any part of his parental responsibility for the child concerned.

Essentials 25: [Children Act 1989](#) – parental responsibility**[2.236]***All references to [ChA 1989](#) unless stated otherwise***Essential legal framework**

Parental responsibility (PR) is 'all the rights, duties, powers, responsibilities and authority which by law a parent ... has in relation to the child and his property' (s 3(1)). The concept describes an adult's responsibility to secure the welfare of the child, exercised for the benefit of the child, not the adult.

There is often more than one holder of PR. If so, they can act independently (s 2(7)) unless the law requires them to act together (eg change of surname or removal from the UK (s 13)), although case law emphasises they are expected to work cooperatively to make decisions for the welfare of the child (see [2.237\[1\]](#)).

Mothers: automatically have PR at birth (s 2(1), (1A) and (2)).

Fathers: automatically have PR if married to/in civil partnership with the mother (s 2(1)) including where the marriage/CP took place after the birth (s 2(3)). Other fathers can acquire PR by:

- registration on the birth certificate (s 4(1)(a));
- a formal and registered agreement with the mother (s 4(1)(b));
- obtaining a 'live with' order (s 12(1)) or, separately,
- a PR order (s 4(1)(c)), when the decision depends on the s 1 welfare test, having particular regard to the father's commitment and attachment to the child and his motivation in applying for PR: see [2.238\[2\]](#).

HFEA second female parent: can acquire PR (a) automatically at birth under s 2(1A) if married to or in a CP with mother or the agreed female parenthood HFEA conditions apply or (b) at any time after birth under s 4ZA or s12, analogous with fathers, as above.

Step-parents: if married to a parent with PR can acquire PR by the agreement of all parents with PR (s 4A(1)(a)) or by court order (s 4A(1)(b)).

Guardians (G) on death: a person with PR may appoint a G for the child by will or formal statement (s 5(3)). The appointment will take effect where the appointer's death leaves no one with PR for the child or where a 'lives with' s 8 order was in force naming the appointer immediately before their death (s 5(7)). The court may also appoint a G if there is no one with PR for a child or the holder of a 'lives with' order has died (s 5(1)).

Special guardians: acquire PR when the SGO is made for as long as the order remains in force (s 14C(1)).

Prospective adopters: acquire PR if child is placed with them, shared with any parent who has PR and the LA/adoption agency ([ACA 2002, s 25](#)).

Adoptive parents: acquire PR to exclusion of everyone else when the AO is made ([ACA 2002, s 46](#) (1)–(2)).

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Local Authorities: acquire PR if an EPO (s 44(4)(c)), or ICO/CO (s 33(3)) is made. The adoption agency has PR where a PO is in force ([ACA 2002, s 25\(2\)](#)).

Carers: acquire PR if an order made for the child to live with them, for as long as the order remains in force (s 12(2)). A person caring for a child but who does not have PR may do what is reasonable to safeguard or promote the welfare of a child (s 3(5)).

Person spending time/having contact: the court may provide that they should have PR for so long as they are named in a CAO as a person with whom the child does not live but spends time or otherwise has contact (s 12(2A)).

Restricting / determining exercise of PR:

- PSOs and SIOs restrict or determine the exercise of PR (s 8(1));
- the granting of (a) a SGO or (b) a CO, ICO or EPO does not remove PR from those who have it but gives an 'enhanced' PR to the SG(s) or LA entitling them respectively (a) to exercise their PR to the exclusion of the other holders of PR (s 14C(1) – SGOs) or (b) to determine the extent to which other holders of PR may meet their PR (s 33(3) and see s 31(11) – COs) / to take such action as is reasonably required to safeguard or promote the welfare of the child (s 44(4)–(5) – EPOs);
- parental authority dwindles as the child grows towards autonomy with increasing age and understanding: see *Gillick v West Norfolk and Wisbech AHA* [1996] 1 FLR 224 at [235]–[237].

Terminating PR: PR cannot be removed from those who have it automatically except by adoption or parental order. PR can be removed by court order from a parent who acquired it by registration, agreement or order (ss 4(2A) and 4ZA(5)): see [2.238\[3\]](#). PR cannot be surrendered or transferred, but may be delegated (s 2(9)).

Common issues in practice

What if there is a dispute about paternity? If the parties cannot afford it, Cafcass can be ordered to arrange and pay for DNA testing under [FLRA 1969, s 20](#). A declaration of parentage can be made under [s 55A](#) FLA 1986 and the birth can be re-registered under [BDRA 1953, s 14A](#) to record the father, although this does not of itself confer PR, which must be separately applied for and is based on the s 1 welfare test.

What if the person on the birth certificate turns out not be the father? No PR is acquired at any stage by an individual who is not the biological/genetic father but is wrongly registered as 'father' (*Re J (Loss of Parental Responsibility)* [2026] EWCA Civ 344 at [80]).

Frequently overlooked: s 12(1) and (1A) respectively require a court, on making a 'lives with' order in favour of a parent without PR, also to make an order for PR under s 4; and, on making a 'spend time with' order in favour of such a parent, to consider doing so.

Procedural guides and standard orders

PROCEDURAL GUIDE D6: Parental Responsibility Order or Agreement (or Discharge of the Same).

Standard order 18.2 for Declarations of Parentage.

Miscellaneous: use form BD1 with an order for Cafcass DNA testing. Guidance is available via DNAsupport@cafcass.gsi.gov.uk or CAFCASSCymruDNASupport@wales.gsi.gov.uk and at www.cafcass.gov.uk/parent-carer-or-family-member/applications-child-arrangements-order/other-support-services-cafcass-delivers-behalf-ministry-justice/dna-testing.

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Amendments—[HFEA 2008](#); [ACA 2002](#); [SI 2019/1458](#).

Meaning of 'mother'—The policy choice of Parliament has been that a person who gives birth to a child is always described as the mother of that child, and a child only ever has one mother: *R (Alfred McConnell & YY v Registrar General for England & Wales* [2020] EWCA Civ 559, [\[2020\] 2 FLR 366](#) at [66], where a transgender man who had given birth to a child after obtaining a gender recognition certificate under the [GRA 2004](#) confirming his gender as male was not entitled to be registered as 'father' on the child's birth certificate; he had to be registered as the child's mother; there was no incompatibility between the [GRA 2004](#) and the ECHR.

Meaning of 'father'—The definition of 'father' for the purposes of [ChA 1989](#) is the common law definition and is limited to the child's biological/genetic father (ie the individual whose sperm has fertilised an ovum so as to create the embryo from which the living child has developed); the definition does not extend to others who have acted as the child's psychological/social father (*Re J (Loss of Parental Responsibility)* [\[2026\] EWCA Civ 344](#) at [4] and [80](i)).

Automatic PR—The effect of [ChA 1989, s 2](#) is that (1) in all cases, whether married or not, a child's mother will have PR; (2) where a child's father and mother were married to, or civil partners of, each other at the time of the birth, the father will have PR; (3) where a woman was married to, or in a civil partnership with, a mother who has given birth in the circumstances stipulated in [HFEA 2008, s 42](#) or [s 43](#) together with [FLRA 1987, s 1\(3\)](#), that woman will be treated as a parent and will have PR (*Re A (Parental Responsibility)* [2023] EWCA Civ 689, [\[2024\] 1 FLR 1](#) at [6]; and see 'the historical context' at [78]–[83]). For **Acquisition of PR** by a father, second female parent or step-parent, see ss 4, 4ZA and 4ZB, paras [2.238–2.240](#).

Where more than one person holds PR (s 2(7))—Each person may act alone and without the other, but s 2(7) does not give one party dominance or priority over the other in the exercise of PR; each parent has equal PR, even though the day to day realities of life mean that each frequently acts alone; this applies particularly where the parties live in separate households and one parent is the primary carer; as neither parent has primacy over the other, the parties have no option but to come to court to seek a resolution when they cannot agree in respect of certain important decisions: (*Re H (A Child) (Parental Responsibility: Vaccination)* [2020] EWCA Civ 664, [\[2020\] 2 FLR 753](#) at [92]–[94]).

[2.237]

3 Meaning of 'parental responsibility'

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- (1) In this Act 'parental responsibility' means all the rights, duties, powers, responsibilities and authority which by law a parent of a child has in relation to the child and his property.
- (2) It also includes the rights, powers and duties which a guardian of the child's estate (appointed, before the commencement of section 5, to act generally) would have had in relation to the child and his property.
- (3) The rights referred to in subsection (2) include, in particular, the right of the guardian to receive or recover in his own name, for the benefit of the child, property of whatever description and wherever situated which the child is entitled to receive or recover.
- (4) The fact that a person has, or does not have, parental responsibility for a child shall not affect –
 - (a) any obligation which he may have in relation to the child (such as a statutory duty to maintain the child); or
 - (b) any rights which, in the event of the child's death, he (or any other person) may have in relation to the child's property.
- (5) A person who –
 - (a) does not have parental responsibility for a particular child; but
 - (b) has care of the child,

may (subject to the provisions of this Act) do what is reasonable in all the circumstances of the case for the purpose of safeguarding or promoting the child's welfare.

[2.237[1]]

Emphasis on 'responsibility'—The [ChA 1989](#) places the primary responsibility of bringing up children on their parents; PR is a significant matter of status as between parent and child and, just as important, as between each of the parents; in general terms, it will be the duty of one parent to ensure that the rights of the other parent are respected, and vice versa, for the benefit of the child (see *Re W (Direct Contact)* [2012] EWCA Civ 999, [\[2013\] 1 FLR 494](#), per McFarlane LJ at [45]–[48] and 'postscript' at [72]–[80]; endorsed and expanded upon by *Munby P in Re H-B (Contact)* [2015] EWCA Civ 389, [\[2015\] 2 FCR 581](#) at [71]–[76]).

Status—Whether or not a parent has PR gives them a status in their child's life which differs from that of a parent who does not have PR, but any such status is of flexible weight or standing and much will depend upon the degree to which a parent is able or permitted to exercise PR when determining the importance of that status for the child or other parent (*Re A (Parental Responsibility)* [2023] EWCA Civ 689, [\[2024\] 1 FLR 1](#) at [85]).

PR and the 'no order' principle—The all-encompassing nature of PR underpins the 'no order' principle in [ChA 1989, s 1\(5\)](#) (*Re D (Withdrawal of Parental Responsibility)* [2014] EWCA Civ 315, [\[2015\] 1 FLR 166](#), CA at [11]).

Property—A purposive reading of subsections (1)–(3) also includes the responsibility and duty of the person with responsibility to take steps which enable the child to receive or recover property, or to enter into a contract for sale on behalf of the child (*Re B (A Child)* [2022] EWFC 7, [\[2022\] 2 FLR 523](#) at [9]–[12]).

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Meaning of PR in Hague Convention 1996—The HC 1996, Art 1(2) defines the meaning of 'parental responsibility' in cases to which the Convention applies; see notes under para [6.82\[1\]](#). Arts 16–18 cover the attribution, extinction and exercise of parental responsibility in such cases; see notes under paras [6.97\[1\]](#)–[6.99\[1\]](#).

[2.238]

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4 Acquisition of parental responsibility by father

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- (1) Where a child's father and mother were not married to, or civil partners of, each other at the time of his birth, the father shall acquire parental responsibility for the child if—
- (a) except where subsection (1C) applies, he becomes registered as the child's father under any of the enactments specified in subsection (1A);
 - (b) he and the child's mother make an agreement (a 'parental responsibility agreement') providing for him to have parental responsibility for the child; or
 - (c) the court, on his application, orders that he shall have parental responsibility for the child.
- (1A) The enactments referred to in subsection (1)(a) are—
- (a) paragraphs (a), (b) and (c) of section 10(1) and of [section 10A\(1\)](#) of the Births and Deaths Registration Act 1953;
 - (aa) regulations under [section 2C](#), [2D](#), [2E](#), [10B](#) or [10C](#) of the Births and Deaths Registration Act 1953
 - (b) paragraphs (a), (b)(i) and (c) of [section 18\(1\)](#), and [sections 18\(2\)\(b\)](#) and [20\(1\)\(a\)](#) of the Registration of Births, Deaths and Marriages (Scotland) Act 1965; and
 - (c) sub-paragraphs (a), (b) and (c) of Article 14(3) of the Births and Deaths Registration (Northern Ireland) Order 1976.
- (1B) The Secretary of State may by order amend subsection (1A) so as to add further enactments to the list in that subsection.
- (1C) The father of a child does not acquire parental responsibility by virtue of subsection (1)(a) if, before he became registered as the child's father under the enactment in question—
- (a) the court considered an application by him for an order under subsection (1)(c) in relation to the child but did not make such an order, or
 - (b) in a case where he had previously acquired parental responsibility for the child, the court ordered that he was to cease to have that responsibility.
- (2) No parental responsibility agreement shall have effect for the purposes of this Act unless—
- (a) it is made in the form prescribed by regulations made by the Lord Chancellor; and
 - (b) where regulations are made by the Lord Chancellor prescribing the manner in which such agreements must be recorded, it is recorded in the prescribed manner.
- (2A) A person who has acquired parental responsibility under subsection (1) shall cease to have that responsibility only if the court so orders.
- (3) The court may make an order under subsection (2A) on the application—
- (a) of any person who has parental responsibility for the child; or

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- (b) with the leave of the court, of the child himself,
subject, in the case of parental responsibility acquired under subsection (1)(c), to section 12(4).
- (4) The court may only grant leave under subsection (3)(b) if it is satisfied that the child has sufficient understanding to make the proposed application.

[2.238[1]]

Amendments—[ACA 2002](#); [SI 2003/3191](#); [WRA 2009](#); [SI 2019/1458](#).

Defined terms—'child': s 105(1); 'parental responsibility': s 3.

Funding in disputed paternity cases—See para [2.245\[2\]](#).

Father and mother not married to each other at time of child's birth (s 4(1))—S 2(3) provides that references in the Act to a child whose father and mother were not married to each other at the time of his birth must be read with [FLRA 1987, s 1](#). Consequently, where the child in question is treated as legitimate by virtue of the [Legitimacy Act 1976, s 1](#) (legitimacy of children of certain void marriages), is a legitimated person under s 10 of that Act (legitimation in various circumstances, such as by subsequent marriage of the child's parents), has been adopted by the parents within the meaning of AA 1976, Pt IV, or is otherwise treated in law as legitimate, the case does not fall within the provisions of s 4(1) ([FLRA 1987, s 1\(2\), \(3\)](#)). The time of a person's birth must be taken to include any time during the period beginning with the insemination resulting in his birth or, where there was no such insemination, his conception, and ending with his actual birth ([FLRA 1987, s 1\(4\)](#)). As to the parents of a child born of in vitro fertilisation, artificial insemination, etc, see [HFEA 2008, ss 33–48](#) (paras [2.754–2.769](#)).

Acquisition of PR by father on registration or re-registration of birth (s 4(1)(a))—Since 1 December 2003 (under changes introduced by [ACA 2002, s 111](#)), a father who was not married to the mother at the time of the child's birth has PR if his name is placed on the birth certificate at registration or re-registration of the birth under the [BDRA 1953, ss 10, 10A](#) (though notably *not* where re-registration is effected under [BDRA 1953, s 14A](#) following a statutory declaration of parentage – see *Re CA & Ors (Children of Unregulated Sperm Donor)* [2025] EWFC 130 at [125] and [129]). PR will run from the date of the registration rather than the birth. However, in reality, the unmarried father will not be able to register his name without the consent of the mother. For the distinction between legal parentage and birth registration, see *P v Q* [2024] EWCA Civ 878, [\[2024\] 2 FLR 1201](#) at [16]–[20]. What if it transpires that the person who is registered as father is not in fact the biological father? No PR is acquired at any stage by an individual who is not the biological/genetic father but is wrongly registered as 'father'; in consequence, the question of whether PR in such circumstances is automatically terminated on the making of a declaration of non-parentage under [FLA 1986, s 55A](#) does not arise (*Re J (Loss of Parental Responsibility)* [\[2026\] EWCA Civ 344](#) at [80]).

[2.238[2]]

Acquisition of PR by father by agreement with mother (s 4(1)(b) and s 4(2))—Agreement to be made and recorded as prescribed by the Parental Responsibility Agreement Regulations 1991, [SI 1991/1478](#).

There is a presumption that a biological father without parental responsibility for a child should, if he so applied, be made a party to care proceedings in respect of that child unless there was a justifiable reason for not doing so. There is no requirement for the father to show an arguable case or even to have a specific application to make (*Re S (A Child)* [2023] EWCA Civ 706, [\[2023\] 2 FLR 1238](#)).

Acquisition of PR by father by court order (s 4(1)(c))—The father may apply to the court for a PR order (see PROCEDURAL GUIDE D6). The test to be applied is the welfare test in [ChA 1989, s 1](#): 'the child's welfare shall be the court's paramount consideration'; the application is not one of those specified in s 1(4) and so the welfare checklist in s 1(3) does not apply; considerations will include (1) the degree of commitment the father has shown towards the child, (2) the degree of attachment between him and the child, (3) the reasons why he is applying for the order, (4)

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the status of parenthood which an order confers and the potential corollary benefit for the child's self-esteem; and while there is no presumption, a PR order should normally be made on a father's application and it will be a rare case where it is not (*Re M (Parental Responsibility Order)* [2013] EWCA Civ 969, [\[2014\] 1 FLR 339](#) at [14]–[18]). Where such an order is made in respect of an individual who is not in fact the biological/genetic father, it is likely that the order, in common with all court orders, will be valid whilst it is in force but, where non-paternity is established, the court must discharge it on the basis that it was made without jurisdiction (*Re J (Loss of Parental Responsibility)* [\[2026\] EWCA Civ 344](#) at [84]).

Acquisition of PR by father by court order alongside child arrangements order ([ChA 1989, s 12\(1\) and \(1A\)](#))—Where the court makes a child arrangements order in favour of a father who does not already have PR, naming him as a person with whom the child is to live, it must also make a PR order under s 4 ([ChA 1989, s 12\(1\)](#)). Where the court makes a child arrangements order in favour of a father who does not already have PR naming him as a person with whom the child is to spend time or otherwise have contact, but not as a person with whom the child is to live, the court must decide whether it would be appropriate, in view of the provision made in the order with respect to the father, for him to have PR and, if so, the court must make a PR order under s 4 ([s 12\(1A\)](#)). The key point is that if the child arrangements order is later discharged, the PR order will remain in force.

Disputed paternity and risk of child abduction—See guidance in respect of the 'abduction' gap in *Re J (Loss of Parental Responsibility)* [\[2026\] EWCA Civ 344](#) at [84].

[2.238[3]]

Removal of PR from father who has acquired it ([s 4\(2A\)](#))—Where parents are married or are in a civil partnership, there is no power to revoke the PR of a father or second female parent; that position is in contrast to unmarried fathers, unmarried second female parents or step-parents where, by [ChA 1989, ss 4\(2A\), 4ZA\(5\)](#) or [4A\(3\)](#) respectively, the court has the power to bring their PR to an end; this distinction is not incompatible with the ECHR 1950 (*Re A (Parental Responsibility)* [2023] EWCA Civ 689, [\[2024\] 1 FLR 1](#) at [101]–[103]). When a court is considering an application relating to the cessation of PR, the child's welfare will be the court's paramount consideration; there is no requirement to consider the 'welfare checklist' but the court is not prevented from doing so and may find it helpful to use an analytical framework not least because welfare has to be considered and reasoned; the 'no order' principle applies (*Re D (Withdrawal of Parental Responsibility)* [2014] EWCA Civ 315, [\[2015\] 1 FLR 166](#) at [12]). The authorities make clear that the court must ask itself whether the father would succeed if he were now to be applying for a PR order (*D v E (Termination of Parental Responsibility)* [2021] EWFC 37, [\[2022\] 1 FLR 582](#) at [52]). For further examples and discussion of 'extreme' cases where PR has been removed from unmarried fathers, see *Re T-D (Children: Specific Issue Order)* [2024] EWCA 793, [\[2025\] 1 FLR 365](#) at [40], [46]–[48] and [52](4). If the PR order was made alongside a child arrangements order, the court will not make an order bringing PR to an end so long as the child arrangements order remains in force insofar as it provides for the child to live with the father ([ChA 1989, s 12\(4\)](#)).

Who may apply for removal of PR ([s 4\(3\) and 4\(4\)](#))—An application may be made by any person who has PR for the child or, with the leave of the court, by the subject child; but the court will only grant leave if satisfied that the child has sufficient understanding to make the proposed application. For consideration of 'understanding', see notes on Considered in light of age and understanding under para [2.234\[5\]](#) and notes under FPR 2010, r 16.29 at para [3.824\[1\]](#). See PROCEDURAL GUIDE D6.

Control of the exercise of PR—Irrespective of whether or not there is a statutory power to bring PR to an end, in every case the court may control and limit a parent's ability to exercise PR through the making of prohibited steps orders, and may enhance the ability of the other parent to exercise PR by making specific issue orders; the court may further impose restrictions under [ChA 1989, s 91\(14\)](#) and [s 91A](#) and the remaining status of PR may be left no more than 'an empty vessel' (*Re A Parental Responsibility*) [2023] EWCA Civ 689, [\[2024\] 1 FLR 1](#) at [10]–[11] and [96]–[98]). For discussion of 'extreme' cases where the court has prohibited a parent from taking some steps or any steps at all to exercise PR, see *Re T-D (Children: Specific Issue Order)* [2024] EWCA 793, [\[2025\] 1 FLR 365](#) at [39], [46]–[48] and [52](4).

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Father without PR and joinder—There is a presumption that a biological father without PR for a child should, if he so applied, be made a party to care proceedings in respect of that child unless there was a justifiable reason for not doing so; there is no requirement for the father to show an arguable case or even to have a specific application to make (*Re S (A Child)* [2023] EWCA Civ 706, [\[2023\] 2 FLR 1238](#) at [9]–[14]).

[2.238[4]]

PR and same-sex or modern families—The immutable principle is that the child's welfare shall be the court's paramount consideration in determining issues such as child arrangements and parental responsibility; the welfare checklist provides a useful framework for identifying the sort of factors that will bear upon each decision (*A v B and C (Lesbian Co-Parents: Role of Father)* [2012] EWCA Civ 285, [\[2012\] 2 FLR 607](#) at [39]). See *Re G (Shared Residence Order: Biological Mother of Donor Egg)* [2014] EWCA Civ 336, [\[2014\] 2 FLR 897](#) for Black LJ's thorough review of case law in relation to the court's approach – 'there is no universal solution and each case depends on its individual facts'. Examples of this approach in practice:

- (1) *Re B (A Child) (No 2) (Welfare: Child Arrangements Order)* [2017] EWHC 488, [\[2017\] 2 FLR 1326](#), *FD* where the court applied the paramountcy principle to the 'expanded boundaries of legal parenthood, including same sex couples', and confirmed that family life is a matter of substance, not form.
- (2) *JB v KS and E (Contact: Parental Responsibility)* [2015] EWHC 180, [\[2015\] 2 FLR 1180](#) where the court considered in detail the correct approach to determining whether a parental responsibility order should be made for a 4-year-old boy whose birth father and single lesbian mother had met on a co-parenting website and developed a relationship with the shared intention of parenting a child.
- (3) *FC v MC* [2021] EWHC 154 (Fam) where the court determined that it was in the child's best interests to make a shared care/lives with order, which carried with it parental responsibility for the non-biological applicant, in part because it would make it clear to the biological parent that the non-biological parent had an important position for the child.
- (4) *MacDougall v SW (sperm donor: parental responsibility or contact)* [2022] EWFC 50, [\[2023\] 1 FLR 231](#) where a man with Fragile X syndrome (an inheritable condition) acted as a sperm donor through private arrangements in a large number of cases; his applications for a PR order and contact with the various children with whom he had limited or no attachment were all refused.
- (5) *Re S (Children: Parentage and Jurisdiction)* [2023] EWCA Civ 897, [\[2023\] 3 WLR 1143](#) decision upheld that in circumstances where M had separated from her female civil partner (C) who was not named on the birth certificates for two younger children born to M, it was appropriate to consider that those children were children of M and C's family.

[2.238[5]]

See also **Same-sex parenting and modern families** under s 8.

Where natural unmarried father has not signed Birth Register but wishes to be acknowledged as the parent—In these circumstances, the father may make an application, either himself or jointly with the mother, to have the birth re-registered so as to show him as the father ([BDRA 1953, s 10A](#)). This may be done in one of several ways, by presenting the court with the appropriate declaration, statutory declaration of parentage (see **Statutory declaration of parentage**, below), PR agreement or PR order in the prescribed form. Where he does so, he will acquire PR for the child ([ChA 1989, s 4\(1\)](#)).

Statutory declaration of parentage—[FLA 1986, s 55A](#) enables a person to apply to the High Court or the family court for a declaration of parentage to confirm whether or not a person named in the application is or was the parent of another person so named (s 55A(1)). There are various restrictions on applications made under s 55A (s 55A(2)), but the general rule is that the applicant must have a sufficient personal interest in the determination of the application (s 55A(3)). In *Re Human Fertilisation and Embryology Act 2008 (Cases A, B, C, D, E, F, G and H)* [2016] EWHC 791, [\[2017\] 1 FLR 366](#) Munby P noted that the issue of a declaration of parentage is a question of the most fundamental gravity and importance, and one which is important emotionally, psychologically, socially and legally. It

4 Acquisition of parental responsibility by father

engages the child's rights under ECHR, Art 8 and it also engages the child's rights under the UN Convention on the Rights of the Child, Arts 7 and 8. The court may refuse to hear the application if it considers that the determination of the application would not be in the best interests of the child (s 55A(5) and see, for example, *MS v RS* [2020] EWFC 30, [2020] 2 FLR 689). When deciding whether or not to make a declaration under s 55A, the court may have to decide issues both of fact and law; the court's focus is on the relationships identified in the application, but it must reach its conclusion by normal processes of fact-finding and legal analysis, leading to a conclusion that a named person is or is not the legal parent of the child (*P v Q and F (Child: Legal Parentage)* [2024] EWCA Civ 878, [2024] 2 FLR 1201 at [38]). Where the court is satisfied of the truth of the proposition to be declared, it must make the declaration unless it would be manifestly contrary to public policy to do so (s 58(1) and see, for example, *H v AN Adoption Agency (No 2) (Declaration of Parentage and Public Policy)* [2021] EWHC 1943, [2022] 1 FLR 1304). See further review of authorities in *ED v MG* [2025] EWHC 1876 at [19]–[23].

The procedure to be followed is set out in FPR 2010, rr 8.18–8.22.

See *Re Human Fertilisation and Embryology Act 2008* (Cases A, B, C, D, E, F, G and H) [2015] EWHC 2602, [2017] 1 FLR 366, FD for confirmation that a declaration of parentage is an appropriate remedy to correct errors made by fertility clinics in the handling of patients' consents to the use of donated gametes. See also *Human Fertilisation and Embryology Act (Cases AD, AE, AF, AG and AH: No 2)* [2017] EWHC 1782, [2018] 1 FLR 1120, where Munby P provided guidance as to the approach to obtaining declarations in such cases that can be categorised as straightforward and undisputed. See *Spencer v Anderson (Paternity Testing: Jurisdiction)* [2016] EWHC 851, [2017] 1 FLR 1204, where the court granted an application for a s 55A declaration directing the testing of DNA of a deceased man alleged to be the applicant's father, on the basis that although there was no statutory power to direct post-mortem scientific testing to establish biological relationships, it was in the interests of justice that testing should take place and it was a proper exercise of the court's inherent jurisdiction to secure that outcome. See *Re G (Declaration of Parentage: Removal of Person Identified as Mother From Birth Certificate (No 2))* [2018] EWHC 3361 (Fam) as an example of case where the court made a s 55A declaration to identify a psychological mother, with no genetic or gestational connection with the child, as not being the child's mother. And see *FLA 1986, s 55A* and para 2.621[1].

[2.238[6]]

PR where a care order is in force—See *ChA 1989, s 33(3)* and para 2.329[1]. A local authority responsible for a child under a care order has no power to prevent the child's mother from entering into a PR agreement with the child's unmarried father (*Re X (Parental Responsibility Agreement: Children in Care)* [2000] 1 FLR 517, FD).

PR where child is accommodated by local authority—Where a child is accommodated by a local authority without an interim or final care order, the local authority does not share PR and has no right to move the child from residential care to the home of foster parents without the consent of the child's parents, since PR includes the right to decide where the child lives (*R v Tameside Metropolitan Borough Council ex parte J* [2000] 1 FLR 942, QBD). See *ChA 1989, s 20* and para 2.290[1].

PR where child lacks capacity—In *Re D (A Child) (residence order: deprivation of liberty) sub nom Birmingham City Council v D* [2019] UKSC 42, [2020] 1 FLR 549 it was confirmed that it was not within the scope of PR for parents to consent to living arrangements for a 16 or 17-year-old child which would otherwise amount to a deprivation of liberty within the meaning of ECHR, Art 5. It was clarified that:

- (a) parental rights have never been absolute and the guiding principle is that the child's welfare should be the court's paramount consideration;
- (b) the parent's legal powers of physical control diminish as the child got older;
- (c) the law accords children who have reached 16 a status which is in some respects different from younger children. In particular, an appreciation of their different needs is indicated by the deliberate decision to include children of 16 to 18 years within the scope of the *Mental Capacity Act 2005*, and to extend a regime

4 Acquisition of parental responsibility by father

of administrative deprivation of liberty safeguards to them under the [Mental Capacity \(Amendment\) Act 2019](#).

Jurisdiction—The jurisdiction of the court to make a PR order is not limited by the [FLA 1986](#) and can be exercised in relation to a child who is permanently out of the jurisdiction, even if that child was also born out of the jurisdiction (*Re S (Parental Responsibility: Jurisdiction)* [\[1998\] 2 FLR 921](#), CA).

Forms

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[2.239]

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4ZA Acquisition of parental responsibility by second female parent

The Family Court Practice (The Red Book) > Part II Statutes > Children Act 1989 > Part I Introductory

- (1) Where a child has a parent by virtue of [section 43](#) of the Human Fertilisation and Embryology Act 2008 and is not a person to whom [section 1\(3\)](#) of the Family Law Reform Act 1987 applies, that parent shall acquire parental responsibility for the child if –
 - (a) she becomes registered as a parent of the child under any of the enactments specified in subsection (2);
 - (b) she and the child's mother make an agreement providing for her to have parental responsibility for the child; or
 - (c) the court, on her application, orders that she shall have parental responsibility for the child.
- (2) The enactments referred to in subsection (1)(a) are –
 - (a) paragraphs (a), (b) and (c) of section 10(1B) and of [section 10A\(1B\)](#) of the Births and Deaths Registration Act 1953;
 - (b) paragraphs (a), (b) and (d) of section 18B(1) and sections 18B(3)(a) and [20\(1\)\(a\)](#) of the Registration of Births, Deaths and Marriages (Scotland) Act 1965; and
 - (c) sub-paragraphs (a), (b) and (c) of Article 14ZA(3) of the Births and Deaths Registration (Northern Ireland) Order 1976.
- (3) The Secretary of State may by order amend subsection (2) so as to add further enactments to the list in that subsection.
- (4) An agreement under subsection (1)(b) is also a 'parental responsibility agreement', and section 4(2) applies in relation to such an agreement as it applies in relation to parental responsibility agreements under section 4.
- (5) A person who has acquired parental responsibility under subsection (1) shall cease to have that responsibility only if the court so orders.
- (6) The court may make an order under subsection (5) on the application –
 - (a) of any person who has parental responsibility for the child; or
 - (b) with the leave of the court, of the child himself,

subject, in the case of parental responsibility acquired under subsection (1)(c), to section 12(4).

- (7) The court may only grant leave under subsection (6)(b) if it is satisfied that the child has sufficient understanding to make the proposed application.

[2.239[1]]

Amendments—Inserted by [HFEA 2008, s 56](#), [Sch 6, Pt 1](#), para 27.

Scope—This provision enables a second female parent to acquire parental responsibility for a child where she becomes registered as a parent of the child under the statutory provisions set out in subsection (2), or enters into

4ZA Acquisition of parental responsibility by second female parent

an agreement with the child's mother or by order of the court. An agreement will be a 'parental responsibility agreement' within the definition of [ChA 1989, s 4\(2\)](#) and will only be terminated by the court on application by anyone with parental responsibility for the child or, with permission, on application by the child himself.

Procedure—The procedure for applying for a parental responsibility order under s 4ZA, and for applying to discharge a parental responsibility or agreement, is the same as for s 4: see PROCEDURAL GUIDE D6.

Automatic parental responsibility order for second female parent—Where the court makes a child arrangements order in favour of a woman who is a parent of the child by virtue of [HFEA 2008, s 43](#) naming her as a person with whom the child is to live, it must also, if she would not otherwise have parental responsibility for the child, make a parental responsibility order (s 12(1)). If, however, the woman is only named as a person with whom the child is to spend time or otherwise have contact, (rather than being named in the order as a person with whom the child is to live), the court has a discretion as to whether also to make a parental responsibility order (s 12(1A)).

Principles—See *Re G (Shared Residence Order: Biological Mother of Donor Egg)* [2014] 2 FLR 897, CA for a comprehensive review of the legal framework governing parental responsibility in the context of the expanded boundaries of legal parenthood, including confirmation that in the context of same-sex relationships, while the only governing principle remains the paramountcy of the child's welfare, particular consideration must be given to the part that each adult can play in the child's life. See also *L v C* [2015] 1 FLR 674, FD, where the court confirmed that there is no precise definition of 'family life'; it is a question of fact, and one of substance not form. There is no pre-determined model of what constitutes a family. With less conventional family structures, the court must take a broad, purposive approach and family life must be interpreted in the light of modern trends. See *FC v MC* [2021] EWHC 154 (Fam) as an example of where the court made a joint lives with a shared care/lives with order in respect of a lesbian former couple; and see also **Parental responsibility and same-sex or modern families** (para [2.238\[4\]](#)).

Prescribed form for parental responsibility agreement—See under s 4.

Application to terminate parental responsibility order or agreement—See under s 4.

Leave under s 4ZA(7) not to be given unless child of sufficient understanding—See under s 4.

Procedure where leave is given—See under s 4.

Hague Convention 1996—See under s 3.

[2.240]

4A Acquisition of parental responsibility by step-parent

[The Family Court Practice \(The Red Book\)](#) > [Part II Statutes](#) > [Children Act 1989](#) > [Part I Introductory](#)

- (1) Where a child's parent ('parent A') who has parental responsibility for the child is married to, or a civil partner of, a person who is not the child's parent ('the step-parent') –
 - (a) parent A or, if the other parent of the child also has parental responsibility for the child, both parents may by agreement with the step-parent provide for the step-parent to have parental responsibility for the child; or
 - (b) the court may, on the application of the step-parent, order that the step-parent shall have parental responsibility for the child.
- (2) An agreement under subsection (1)(a) is also a 'parental responsibility agreement', and section 4(2) applies in relation to such agreements as it applies in relation to parental responsibility agreements under section 4.
- (3) A parental responsibility agreement under subsection (1)(a), or an order under subsection (1)(b), may only be brought to an end by an order of the court made on the application –
 - (a) of any person who has parental responsibility for the child; or
 - (b) with the leave of the court, of the child himself.
- (4) The court may only grant leave under subsection (3)(b) if it is satisfied that the child has sufficient understanding to make the proposed application.

[2.240[1]]

Amendments—Inserted by [ACA 2002, s 112](#). Amended by [CPA 2004, s 75\(1\), \(2\)](#).

Scope—This provision enables a step-parent to acquire parental responsibility for a child of his spouse by agreement between the step-parent and the parents who have parental responsibility for the child, or by order of the court. This will be a 'parental responsibility agreement' within the definition of [ChA 1989, s 4\(2\)](#) and will only be terminated by the court on application by any person with parental responsibility for the child, or, with permission, on application by the child himself.

Procedure—The procedure for applying for a parental responsibility order under s 4A, and for applying to discharge a parental responsibility order or agreement, is the same as that for s 4: see PROCEDURAL GUIDE D6.

Extent of court's power under s 4A—Where the husband is married to the mother of the child but is not the biological parent, s 4A is the only available route by which he can seek parental responsibility. The fact that he has become the psychological parent of the child is significant but will not necessarily be sufficient to invest him with an ongoing major role in the child's life (*Re R (Parental Responsibility)* [\[2011\] 2 FLR 1132, FD](#)).

Automatic parental responsibility for a step-parent or other non-parent—Where the court makes a child arrangements order (CAO) for a person who is not a parent or guardian of the child, naming them as a person with whom the child is to live, that person must also be given parental responsibility for the child while the order remains in force in those terms (s 12(2)). However, where a court makes a CAO for that person but they are only named in the order as a person with whom the child is to spend time or otherwise have contact (but not to live) then the court has a discretion as to whether also to make a parental responsibility order (s 12(2A)).

4A Acquisition of parental responsibility by step-parent

Parental responsibility agreement to be in prescribed form—See under s 4.

Agreement to be recorded in the prescribed manner—See under s 4.

Application to terminate parental responsibility order or agreement—See under s 4.

Leave under s 4A(3)(b) not to be given unless child of sufficient understanding (s 4A(4))—See under s 4.

Procedure where leave is given—See under s 4.

Hague Convention 1996—See under s 3.

[2.241]

5 Appointment of guardians

The Family Court Practice (The Red Book) > Part II Statutes > Children Act 1989 > Part I Introductory

- (1) Where an application with respect to a child is made to the court by any individual, the court may by order appoint that individual to be the child's guardian or special guardian if –
 - (a) the child has no parent with parental responsibility for him; or
 - (b) a parent, guardian or special guardian of the child's was named in a child arrangements order as a person with whom the child was to live and has died while the order was in force; or
 - (c) paragraph (b) does not apply, and the child's only or last surviving special guardian dies.
- (2) The power conferred by subsection (1) may also be exercised in any family proceedings if the court considers that the order should be made even though no application has been made for it.
- (3) A parent who has parental responsibility for his child may appoint another individual to be the child's guardian in the event of his death.
- (4) A guardian of a child may appoint another individual to take his place as the child's guardian in the event of his death; and a special guardian of a child may appoint another individual to be the child's guardian in the event of his death.
- (5) An appointment under subsection (3) or (4) shall not have effect unless it is made in writing, is dated and is signed by the person making the appointment or –
 - (a) in the case of an appointment made by a will which is not signed by the testator, is signed at the direction of the testator in accordance with the requirements of [section 9](#) of the Wills Act 1837; or
 - (b) in any other case, is signed at the direction of the person making the appointment, in his presence and in the presence of two witnesses who each attest the signature.
- (6) A person appointed as a child's guardian under this section shall have parental responsibility for the child concerned.
- (7) Where –
 - (a) on the death of any person making an appointment under subsection (3) or (4), the child concerned has no parent with parental responsibility for him; or
 - (b) immediately before the death of any person making such an appointment, a child arrangements order was in force in which the person was named as a person with whom the child was to live or the person was the child's only (or last surviving) special guardian,

the appointment shall take effect on the death of that person.

- (8) Where, on the death of any person making an appointment under subsection (3) or (4) –
 - (a) the child concerned has a parent with parental responsibility for him; and
 - (b) subsection (7)(b) does not apply,

the appointment shall take effect when the child no longer has a parent who has parental responsibility for him.

5 Appointment of guardians

- (9) Subsections (1) and (7) do not apply if the child arrangements order referred to in paragraph (b) of those subsections also named a surviving parent of the child as a person with whom the child was to live.
- (10) Nothing in this section shall be taken to prevent an appointment under subsection (3) or (4) being made by two or more persons acting jointly.
- (11) Subject to any provision made by rules of court, no court shall exercise the High Court's inherent jurisdiction to appoint a guardian of the estate of any child.
- (12) Where the rules of court are made under subsection (11) they may prescribe the circumstances in which, and conditions subject to which, an appointment of such a guardian may be made.
- (13) A guardian of a child may only be appointed in accordance with the provisions of this section.

[2.241[1]]

Amendments—[ACA 2002, s 115](#); [CFA 2014, s 12](#), Sch 2.

Defined terms—'child': s 105(1); 'child arrangements order': s 8(1); 'family proceedings': s 8(3); 'parental responsibility': s 3.

Scope—A guardian appointed under this section will generally take over parental responsibility for the child after the death of a parent and must, of course, be distinguished from a guardian ad litem appointed for the purposes of legal proceedings.

Application by any individual (s 5(1))—Application must be made by the person who wishes to be appointed as guardian. 'Individual' is not defined in the Act; it clearly does not include a company or a local authority, or even an 'artificial individual' within the local authority such as the director of social services (*Re SH (Care Order: Orphan)* [1995] 1 FLR 746, FD). However, there is nothing to prevent a number of individuals each launching separate applications and this could lead to the appointment of a couple, for example, an aunt and uncle. Although there does not seem to be any bar on an application by a minor, good sense suggests that the court would be unlikely to grant an application by one child to be appointed to act as guardian for another.

'power ... may also be exercised in any family proceedings' (s 5(2))—If it thinks fit, the court may, in any family proceedings, make an order appointing a guardian of its own initiative without any formal application having been filed. No doubt such an order will most frequently be prompted at the suggestion of a party to the proceedings or of an interested friend or relative who has been allowed to address the court, or even of the child himself, but there is nothing to prevent the court itself taking the lead in appropriate circumstances.

Date from which the appointment is effective—There may be a delay between a guardian being named (eg in a will or in a court order) and the time when he actually acquires parental responsibility for the child concerned. Although the Act makes no specific provision, it is apparent that the guardian is not regarded as having been appointed in accordance with the provisions of this section until the later stage.

Family proceedings—Any application under this section is classified as 'family proceedings' (s 8(3), (4)).

Procedure—A guardian may be appointed in writing by a parent with PR, the appointment to take effect when he dies (if he has in his favour a child arrangements order naming him as a person with whom the child is to live) or when the last surviving parent with PR dies. In default (or in addition), the court has a right of appointment. The court may also terminate the appointment of a guardian, whether appointed by the court or by a parent ([ChA 1989, s 6\(7\)](#)). On making an application to the court, the applicant must also file a completed Form FM1 confirming attendance at a mediation information and assessment meeting or giving reasons for not attending (FPR PD3A, para 12(c)).

Hague Convention 1996: measures of protection—The HC 1996 lays down rules in respect of measures directed to the protection of the person or property of the child in cases (Art 1) to which the Convention applies. The 'measures of protection' are set out in Art 3 and include 'guardianship, curatorship and analogous institutions'. They

5 Appointment of guardians

are intended to include systems of protection, representation or assistance that are established in favour of a child when his parents are deceased or are no longer authorised to represent him (*Handbook*, para 3.23; *Lagarde Report*, para 21). See also the HC 1996 in Part VI at para [6.80](#).

Forms

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[2.242]

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6 Guardians: revocation and disclaimer

The Family Court Practice (The Red Book) > Part II Statutes > Children Act 1989 > Part I Introductory

- (1) An appointment under section 5(3) or (4) revokes an earlier such appointment (including one made in an unrevoked will or codicil) made by the same person in respect of the same child, unless it is clear (whether as the result of an express provision in the later appointment or by any necessary implication) that the purpose of the later appointment is to appoint an additional guardian.
- (2) An appointment under section 5(3) or (4) (including one made in an unrevoked will or codicil) is revoked if the person who made the appointment revokes it by a written and dated instrument which is signed –
 - (a) by him; or
 - (b) at his direction, in his presence and in the presence of two witnesses who each attest the signature.
- (3) An appointment under section 5(3) or (4) (other than one made in a will or codicil) is revoked if, with the intention of revoking the appointment, the person who made it –
 - (a) destroys the instrument by which it was made; or
 - (b) has some other person destroy that instrument in his presence.
- (3A) An appointment under section 5(3) or (4) (including one made in an unrevoked will or codicil) is revoked if the person appointed is the spouse of the person who made the appointment and either –
 - (a) a court of civil jurisdiction in England and Wales dissolves or annuls the marriage, or
 - (b) the marriage is dissolved or annulled and the divorce or annulment is entitled to recognition in England and Wales by virtue of Part II of the Family Law Act 1986,

unless a contrary intention appears by the appointment.

- (3B) An appointment under section 5(3) or (4) (including one made in an unrevoked will or codicil) is revoked if the person appointed is the civil partner of the person who made the appointment and either –
 - (a) an order of a court of civil jurisdiction in England and Wales dissolves or annuls the civil partnership, or
 - (b) the civil partnership is dissolved or annulled and the dissolution or annulment is entitled to recognition in England and Wales by virtue of Chapter 3 of Part 5 of the Civil Partnership Act 2004,

unless a contrary intention appears by the appointment.

- (4) For the avoidance of doubt, an appointment under section 5(3) or (4) made in a will or codicil is revoked if the will or codicil is revoked.
- (5) A person who is appointed as a guardian under section 5(3) or (4) may disclaim his appointment by an instrument in writing signed by him and made within a reasonable time of his first knowing that the appointment has taken effect.
- (6) Where regulations are made by the Lord Chancellor prescribing the manner in which such disclaimers must be recorded, no such disclaimer shall have effect unless it is recorded in the prescribed manner.

6 Guardians: revocation and disclaimer

- (7) Any appointment of a guardian under section 5 may be brought to an end at any time by order of the court –
- (a) on the application of any person who has parental responsibility for the child;
 - (b) on the application of the child concerned, with leave of the court; or
 - (c) in any family proceedings, if the court considers that it should be brought to an end even though no application has been made.

[2.242[1]]

Amendments—[Law Reform \(Succession\) Act 1995, s 4](#); [CPA 2004, s 76](#); DDSA 2020, Sch, para 52.

Defined terms—'child': s 105(1); 'family proceedings': s 8(3); 'parental responsibility': s 3.

Scope—This section deals with the ways in which the appointment of a guardian may be brought to an end (ie by revocation, disclaimer or court order). It has been extended to provide for the revocation of appointment of a guardian, in the absence of any express contrary intention, in the case of an appointment of a former spouse or civil partner as guardian in the will of a testator dying after 1 January 1996 by dissolution or annulment of the marriage or civil partnership. In practical terms, this will affect appointments made by a testator in favour of his or her former spouse or civil partner in respect of a child who is not the child of the former spouse or civil partner. Where the child is the child of both parties, the revocation will not have any practical effect since the former spouse or civil partner will continue to have parental responsibility for the child.

'Where regulations are made' (s 6(6))—No such regulations have yet been made.

'on the application of any person who has parental responsibility for the child' (s 6(7)(a))—As the guardian himself will have acquired PR for the child under s 5(6), he could apply for an order terminating his own appointment if the circumstances made it inappropriate for him to disclaim under s 6(5).

'on the application of the child concerned, with leave' (s 6(7)(b))—Permission must be sought in accordance with FPR 2010, rr 18.1–18.13. As to the circumstances in which leave should be given, see **Leave under s 4(3)(b) not to be given unless child of sufficient understanding** under s 4. As is the case with s 4, the checklist of factors in s 1(3) does not apply specifically but gives examples of factors that may be relevant. The position is also likely to be the same under ss 4 and 6 with regard to the relevance of the chances of success of the proposed application, and there is similar uncertainty with regard to the applicability of s 1(1). One difference between the two provisions is that the court is not, under s 6(7), expressly directed to consider whether the child is of sufficient understanding to make the proposed application, but it will no doubt bear this factor in mind.

'in any family proceedings ... even though no application has been made' (s 6(7)(c))—If it thinks fit, the court may, in any family proceedings, make an order terminating the appointment of a guardian even though no formal application has been filed. This may be at the suggestion of a party to the proceedings or of an interested friend or relative allowed to address the court, or even of the child himself, but there is nothing to prevent the court itself taking the lead. Section 6(7)(c) could be used by an individual who seeks to replace an existing guardian but who does not have PR and therefore cannot apply directly for the termination of the existing guardian's appointment. Where such an individual makes an application under s 5(1) for his own appointment (which is classified as family proceedings), he could then invite the court not only to appoint him as guardian for the child but also to terminate the appointment of the existing guardian.

Hague Convention 1996—See notes to s 5.

[2.243]

7 Welfare reports

[The Family Court Practice \(The Red Book\)](#) > [Part II Statutes](#) > [Children Act 1989](#) > [Part I Introductory](#)

- (1) A court considering any question with respect to a child under this Act may –
 - (a) ask an officer of the Service or a Welsh family proceedings officer; or
 - (b) ask a local authority to arrange for –
 - (i) an officer of the authority; or
 - (ii) such other person (other than an officer of the Service or a Welsh family proceedings officer) as the authority considers appropriate,

to report to the court on such matters relating to the welfare of that child as are required to be dealt with in the report.

- (2) The Lord Chancellor may, after consulting the Lord Chief Justice, make regulations specifying matters which, unless the court orders otherwise, must be dealt with in any report under this section.
- (3) The report may be made in writing, or orally, as the court requires.
- (4) Regardless of any enactment or rule of law which would otherwise prevent it from doing so, the court may take account of –
 - (a) any statement contained in the report; and
 - (b) any evidence given in respect of the matters referred to in the report,

in so far as the statement or evidence is, in the opinion of the court, relevant to the question which it is considering.

- (5) It shall be the duty of the authority or officer of the Service or a Welsh family proceedings officer to comply with any request for a report under this section.
- (6) The Lord Chief Justice may nominate a judicial office holder (as defined in [section 109\(4\)](#) of the Constitutional Reform Act 2005) to exercise his functions under subsection (2).

[2.243[1]]

Amendments—[CJCSA 2000 s 74](#), Sch 7, para 88; [CA 2004, s 40](#), [Sch 3](#), paras 5, 6; [CRA 2005, s 15\(1\)](#), Sch 4, paras 203, 204.

Essentials 36: Cafcass officer roles

[2.243[2]]

All references to Cafcass include Cafcass Cymru

All references to rules and Practice Directions (PD) are to FPR 2010

Essential legal framework

(1) Main Cafcass roles in private law proceedings

Safeguarding: under the Child Arrangements Programme (PD12B), on any application for a CAO (but not necessarily for a SIO or PSO), Cafcass must make safeguarding enquiries and report to the court about 'any safety issues' at least three working days before the FHDRA: PD12B paras 13.1–8;

Children and family reporter (CFR): 'A court considering any question with respect to a child under [ChA 1989](#) may (i) ask [a Cafcass officer] ... to report ... on such matters relating to the welfare of that child as are required to be dealt with in the report': s 7(1). The Cafcass officer must comply with the request (s 7(5)). The role is defined by r 16.33 and PD16A, paras 9.1–9.4. Note the report may be written or oral (s 7(3)) and the overriding of the ordinary laws of evidence (s 7(4));

Children's guardian (C): a CG must be appointed in each of the three instances set out in r 16.4(1), of which the most common is the court deciding it is in the best interests of a child to make them a party (r 16.2 and PD16A paras 7.1–7.3), unless the child is able to conduct proceedings without a CG (r 16.6: essentially where the child is 'Gillick competent' for the purposes). Such a CG will normally be a Cafcass officer (PD16A, para 7.4). The role is defined in r 16.22–16.28 and PD16A, paras 7.6–7.7.

(2) Other (untitled) Cafcass roles in private law proceedings

Activity directions/orders imposing activity conditions: a Cafcass officer may be required to provide information about the factors the court must consider before making such direction / order (s 11E(7)), to monitor and report on compliance with such a direction/order (s 11G(2)), and to monitor and report on compliance with contact and shared residence (sic) orders (s 11H(2));

Enforcement orders: a Cafcass officer may be required to provide information about factors the court must consider before making such an order (s 11L(5)), and if such an order is made, will be required to monitor and report on compliance (s 11M).

As to these, see also r 16.38 and PD16A, paras 11.1–11.7.

(3) Children's guardian (CG) in 'specified proceedings' (essentially public law proceedings but fully defined in [ChA 1989, s 41\(6\)](#))

The court must appoint a Cafcass officer as CG 'unless satisfied that it is not necessary to do so in order to safeguard [the child's] interests': s 41(1). The CG is appointed under r 16.3 and is 'under a duty to safeguard the interests of the child ...' (s 41(2)(b)), all of which is further defined in rr 16.16–16.21 and PD16A paras 6.1–6.11. Note the right of a CG to have access to local authority records (s 41(1)) and the overriding of the ordinary laws of evidence (ss 41(11) and 42(2)–(3)).

(4) Cafcass roles in adoption proceedings

On an application to make or revoke a placement order: these are 'specified proceedings' (s 41(6)(hh)) so the court must appoint a Cafcass officer as CG 'unless satisfied that it is not necessary to do so in order to safeguard [the child's] interests' (s 41(1)): see further immediately above;

On an application for an adoption order (AO):

- **reporting officer:** see r 16.30–16.32 and PD16A paras 8.1–8.4. The essence is to provide formal evidence of any consent given by any (relevant) parent or guardian;
- **CG:** the child is not automatically a party to an application for an AO (r 14.3(1)) but the court may make them party under rr 14.3(2) and 16.4, when the same rules apply as to the role of CG in private law proceedings above.

(5) 'Parental order reporter' in HFEA proceedings

See r 16.34–16.35 and PD16A, paras 10.1–10.5.

(6) Wider Cafcass roles related to family proceedings

Family assistance orders: in any family proceedings where the court has power to make an order under ChA 1989, Pt II, a Cafcass officer may be required to be made available 'to advise, assist and (where appropriate) befriend any person named in the order' (s 16(1));

A Cafcass officer must make a **risk assessment** and provide it to the court if, while carrying out their work, they are 'given cause to suspect that the child concerned is at risk of harm' (s 16A).

As to these, see also r 16.38 and PD16A, paras 11.1–11.7.

Other relevant legislation

- The appointment and duties of a solicitor for a child are set out in [ChA 1989, s 41\(3\)–\(5\)](#) and r 16.29.
- Rule 16.36 prevents the appointment of anyone to certain roles where there is or may be a conflict of interests.
- A Cafcass officer may be appointed to more than one role in a case: r 16.37.
- [CJCSA 2000, s 15](#) gives a right to Cafcass officers to conduct litigation/have a right of audience in certain circumstances. In practice this is for those within Cafcass Legal, reflecting a way of working under the Official Solicitor prior to the creation of Cafcass.

Common issues in practice

Who should be asked to prepare a s 7 welfare report? This is for the court to decide. It should take account of (1) any representations made and (2) the current agreement between Cafcass and the ADCS (as of November 2022: the local authority if involved with the child under statutory services or assessment in the last 12 weeks; otherwise Cafcass). The role is the same whichever is appointed but a local authority social worker is termed a 'welfare officer' rather than a CFR: r 16.33, PD16A paras 9.1–9.4 and r 2.3.

Non-appointment of CG in specified proceedings: it is exceptional for the court to decide this is 'not necessary ... to safeguard [the child's] interests' in such cases.

Note: a great deal about how Cafcass officers do their work is available at www.cafcass.gov.uk.

[2.243[3]]

Defined terms—'child', 'local authority': s 105(1); 'officer of the Service': [CJCSA 2000, s 11\(3\)](#).

See notes in respect of [ChA 1989, s 1\(3\)\(a\)](#) at para [2.234\[5\]](#).

Cafcass (Children and Family Court Advisory and Support Service)—The functions of Cafcass are (a) to safeguard and promote the welfare of children; (b) to give advice to any court about any application made to it in such proceedings; (c) to make provision for children to be represented in such proceedings; and (d) to provide information, advice and other support for children and their families: [CJCSA 2000, s12\(1\)](#). The Cafcass website, www.cafcass.gov.uk, contains useful documents about the way Cafcass officers work in particular cases.

FPR 2010, rr 16.33, 16.38 and PD16A, respectively, set out the principal functions of officers of the service in relation to court proceedings. The rules include section 7 reporting by officers of Cafcass and certain children cases formerly handled by the Official Solicitor. The rules do not generally extend to cover local authority officers reporting

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under section 7. However, the one exception is that the power of courts to request reports under [ChA 1989, s 7\(1\)\(b\)](#) from the local authority is unaffected by the Cafcass provisions and officers so instructed will still be referred to as 'welfare officers'.

Role of National Youth Advocacy Service (NYAS)—A joint agreement between NYAS and Cafcass in July 2021 'reflects the roles of both agencies representing children in private law proceedings in order to meet the needs of children and families' (see Part V, para [5.128](#)). Where there is an intractable contact dispute, the court may give permission for NYAS to be approached and shown the court papers in order that they might provide advice and a voice for the children: *Re C (Contact: Moratorium: Change of Gender)* [2006] EWCA Civ 1765, [\[2007\] 1 FLR 1642](#), in which NYAS were invited to represent two children who had not seen their father since he began to live as a woman and had no idea that he had undergone gender reassignment surgery and *Re A-H (Contact Order)* 2008] EWCA Civ 630, [\[2008\] 2 FLR 1188](#).

International social services—Where the assistance of international social services is required, Children and Families Across Borders (CFAB) may be contacted on their UK advice and information hotline on 0207 735 8941 which is open to all statutory and voluntary agencies as well as to private individuals in the UK. Their website is at www.cfab.org.uk and they also provide a secure online enquiry system which may be accessed from the website. Common subjects for inquiry include: children who are taken abroad where there are child protection concerns; assessing the capacity of relatives overseas to care for a child in an out of home placement; tracing and re-establishing contacts with family members abroad when a child presents unaccompanied; living and contact arrangements of children whose parents' have separated and live in different countries; and information about adoption.

[2.243[4]]

Rules as to children and family reporter's duties—See FPR 2010, r 16.33 and PD16A.

'A court considering any question with respect to a child under this Act' (s 7(1))—The court's power is a very wide one and can be used not only in the traditional way in proceedings for child arrangements orders under s 8 but also, for example, in connection with PR applications, applications for specific issue or prohibited steps orders, applications by children for permission to commence proceedings under the Act, and emergency protection order applications.

Where children's guardian acting—Although there is power both at first instance ([ChA 1989, s 7](#)) and on appeal to the High Court from the family court (lay justices) ([ChA 1989, ss 7](#) and [94\(5\)](#)) to appoint a children and family reporter in public law proceedings, only in exceptional circumstances will a welfare report be sought when a children's guardian is already involved (*Re S (A Minor) (Guardian ad litem/Welfare Officer)* [\[1993\] 1 FLR 110](#), CA). The general principle in *Re S* was confirmed in *L v L (Minors) (Separate Representation)* [\[1994\] 1 FLR 156](#), CA.

Conciliation as an alternative—At the First Hearing Dispute Resolution Appointment (see FPR 2010, r 12.31, and PD12B) the district judge is attended by a children and family reporter, and it is essential that both parties and their legal advisers attend. There is an opportunity for the parties to attempt to reach agreement with the assistance of the children and family reporter. If they are able to do so, the district judge will make the appropriate orders; if not, he will give directions for hearing. Under the CAP, the FHDRA is not privileged (PD12B, para 14.9), so that what is said there may be referred to at a later court hearing. Outside the Principal Registry, before ordering an inquiry and report by a children and family reporter, a judge or district judge should, where local conciliation facilities exist, consider whether the case is suitable for conciliation; if so, a direction should be given to that effect (PD12B, para 14.11). If conciliation fails, any report which is ordered must be by a children and family reporter who did not act as a conciliator (see also *Re H (Conciliation: Welfare Reports)* [\[1986\] 1 FLR 476](#), FD).

When a children and family reporter is reporting as opposed to acting as conciliator, he must investigate and report on the situation, but it is not his role to attempt conciliation although he may encourage the parties to settle their differences if the likelihood of a settlement arises during the course of his enquiries.

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Statements made by parties in conciliation meetings are not admissible in evidence, except where the statement clearly indicates that the maker has in the past caused, or is likely in the future to cause, serious harm to the well-being of a child. Even in such a case, the judge has a discretion whether to admit the evidence and should do so only if the public interest in protecting the child outweighs the public interest in the confidentiality of attempted conciliation (*Re D (Minors) (Conciliation: Privilege)* [1993] 1 FLR 932, CA).

[2.243[5]]

Officer of the Service—Historically, children and family reporters have usually been officers of the Service; however, the court has power to invite a report from the local authority. In this context, the old terminology 'welfare officer' remains, since the welfare officer is appointed to report under [ChA 1989, s 7\(1\)\(b\)](#) (see under **Cafcass (Children and Family Court Advisory and Support Service)** (above) and under FPR 2010, r 16.33 and PD16A). *Re W (Welfare Reports)* [1995] 2 FLR 142, CA, highlights the different expertise that can be expected from the two classes of reporter. Welfare officers are accustomed to the court process, to interviewing the child and relevant adults, to attending court, to making recommendations orally or in writing and to submitting to questioning by the parties. Social workers are familiar with the reporting routine in the context of preparing reports for use at child protection conferences and for placing on file for the assistance of other social workers etc. Their knowledge of the court process may be much more limited, and their role will frequently be confined to fact-finding reports and may not involve the making of any recommendations at all. In *F v H and B (By Her Guardian)* [2017] EWHC 3358 (Fam), [2018] 2 FLR 770, a case with a protracted, complex and convoluted history, the court held that it is incumbent on Cafcass officers and other professionals who are called to provide advice and recommendations to the court to inform themselves fully about the case and, at the very least, read through the judgments before they commence their investigations. They should not consider experimenting or trying out with contact for the child or children concerned against a background of previous harmful behaviour and abduction.

Despite the fact that paras (a) and (b) of s 7(1) are expressed as alternatives, it appears that it can be right to order a report from the children and family reporter as well as a report from a social worker. In November 2022, Cafcass and the Association of Directors of Children's Services (ADCS) revised their policy on when and why a local authority social worker or a Cafcass Family Court Adviser (FCA) is best placed to prepare a section 7 report. The policy does not compromise the fact that the ultimate decision is with the court and aims to promote continuity for children and families and avoid duplication. The policy makes clear that the local authority should be ordered to complete the s 7 report when: (a) a child is the subject of an open and active statutory social work case with a local authority; or (b) in the last 12 weeks, before the s 7 report is ordered, there has been a statutory social work assessment of a child's welfare in accordance with [ChA 1989, s 17](#) or [s 47 ChA 1989](#); or (c) in the last 12 weeks, before the s 7 report is ordered, the child has been the subject of a child in need or child protection plan. In all other circumstances, where the local authority is not involved or has not been involved with the family in the last 12 weeks, the court will be advised to order Cafcass to complete the s 7 report.

Once the report is received, the court will consider the conduct of the case further in the light of it at a directions hearing. The local authority will be expected to make the social worker who writes the s 7 report available to give evidence (which will be at the invitation of the court rather than as a witness for any party) and to be cross-examined at the substantive hearing or at any interim hearing where oral evidence is required and to agree to discovery of relevant documentation underlying the report (as to this, see also *W v Wakefield City Council* [1995] 1 FLR 170, FD). Wall J clearly contemplates that, having received the local authority's report, the court might direct that a further report be prepared, this time by a children and family reporter.

In deciding whether to direct a local authority report under s 7, the alternative of s 37 must, of course, be kept in mind. This entitles the court to direct the local authority to investigate the child's circumstances, provided that it appears that it may be appropriate for a care or supervision order to be made in respect of him. However, Wall J points out in *Re A and B (Minors) (No 2)* (above) that, in most cases, s 37 does not apply and that, in any event, it does not appear appropriate in circumstances where the court is requesting the local authority to provide information about an investigation that has already been undertaken rather than requiring it to embark on an investigation.

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For further guidance as to whether a children and family reporter or a local authority should be used, see **Best practice guidance on s 37(1) directions** under [ChA 1989, s 37](#), which also provides guidance on the communication to a local authority of a s 7(1) referral and draws attention to the need to fix a hearing at the time of referral. See **Public Law Outline (PLO)** under FPR 2010, r 12.22, and PD12A.

'such other person ... as the authority considers appropriate' (s 7(1)(b)(ii))—It is not appropriate to use s 7(1)(b)(ii) to make an order requiring the local authority to appoint an officer to obtain a report from a child psychiatrist (*Re K (Contact: Psychiatric Report)* [\[1995\] 2 FLR 432](#), CA). Section 7(1)(b)(ii) confers on the local authority discretion as to the other person appointed, and the court has no power to control that appointment or to require the local authority to pay for expert advice. In specified proceedings, a psychiatric report can be obtained independently through a s 41 children's guardian but there can be no such guardian appointed in private law proceedings. Section 41(6A) includes within the category of proceedings which may be 'specified for the time being ... by rules of court' any proceedings for the making, varying or discharging of an order under [ChA 1989, s 8](#) (ie child arrangements, specific issue and prohibited steps orders). This potential to widen the definition of 'specified proceedings' reflects the growing pressure for the appointment of children's guardians in certain private law children cases, for example bitterly contested child disputes, where children frequently have particular needs and interests that do not coincide with or cannot be adequately represented by the parents (*Re H (Contact Order) (No 2)* [\[2002\] 1 FLR 22](#), FD; *Re M (Intractable Contact Dispute: Interim Care Order)* [\[2003\] 2 FLR 636](#), FD). The use of expert evidence and the instruction of experts in family proceedings is governed by FPR Pt 25 and PD25A–PD25F. See *A v R and Another* [\[2018\] EWHC 521 \(Fam\)](#), where an appeal was allowed after the court had found that an expert psychologist's report was deficient in a number of respects, but then failed to permit a brief adjournment for the father to prepare a properly constituted Pt 25 application to instruct a fresh expert.

[2.243[6]]

Delay occasioned by obtaining a welfare report—Obtaining a welfare report will normally take some weeks or months and will not infrequently cause delay in achieving a final resolution of the issues between the parties. In deciding whether to order a report, the court will therefore have to have in mind s 1(2) (the delay principle) and balance any prejudice that there is likely to be to the child through delay against the desirability of obtaining a report, the child's welfare being the paramount consideration (see *Re H (Minors) (Welfare Reports)* [\[1990\] 2 FLR 172](#), CA). For the position where delay may be occasioned through the need to adjourn proceedings for the children and family reporter to attend to give oral evidence, see **Court differing with recommendations in welfare report** below.

'such matters relating to the welfare of that child as are required' (s 7(1))—Although there is nothing to prevent the court issuing a general request for a report on the child's welfare (in which case, the children and family reporter must simply comply with any regulations in force under s 7(2) and be guided by the Operating Framework for Cafcass), it is usually more efficient to indicate which matters should be addressed. If the children and family reporter becomes concerned about other matters in the course of preparing his report, it would, of course, be entirely proper for him to bring these (and any other relevant factors) to the attention of the court. See *Re D (Safeguarding Checks)* [\[2015\] 1 FLR 991](#), FD.

Risk assessments—By virtue of FPR PD12J *Child Arrangements and Contact Orders: Domestic Abuse and Harm*, and the Cafcass Safeguarding Framework, copies of all applications for child arrangements orders are sent to Cafcass to enable them to undertake initial screening of the parties, including seeking information from the police about any previous convictions and information from the local authority about any previous referrals concerning them. Before the first hearing, Cafcass notifies the court of the results of their searches (see the CAP in FPR PD12B). There are circulars governing the obtaining of details of previous convictions of parties, spouses etc from the police: Home Office Circulars 88/1982, 105/1982, 47/1993. As to the desirability of the court knowing of previous convictions of a party, see *Re R (Minors) (Custody)* [\[1986\] 1 FLR 6](#), CA. See also the *Disclosure of Information between Family and Criminal Agencies and Jurisdictions: 2024 Protocol* (at paras [5.252–5.263](#)) which 'relates to all private and public family law proceedings, including contemplated public law proceedings, and all material held by the police' (para [5.253](#)). In *MS v MN (Contact)* [\[2017\] EWHC 324 \(Fam\)](#), the Court of Appeal directed the local authority to carry out a s 7 risk assessment of the father on the basis that every reasonable

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avenue had to be investigated to see whether contact could be established in a case where violence had occurred but not in the child's presence; the importance of PD12J was confirmed and the Court of Appeal concluded that direct face-to-face contact could not be ordered without a further risk assessment.

'regulations specifying matters which ... must be dealt with' (s 7(2))—No regulations have yet been made in this respect. The reporter must therefore pay careful attention to any specific directions given by the commissioning court about the scope of the report and derive guidance from authorities and from the Operating Framework for Cafcass (see note above). Subject to any limitations expressly imposed by the court it will generally be appropriate to visit the child's home (and, where a change of accommodation is proposed, any proposed new home), to interview the protagonists (mother, father and grandparents if closely involved), local authority social workers with knowledge of the family and anyone else whose view might be of assistance (for example, playgroup leader, teacher or health visitor) and to meet the child (alone and/or in company with parents or carers as appropriate to the application before the court) so as to ascertain, where possible, his wishes and feelings. In *Re R (A Minor) (Court Welfare Report)* [1993] Fam Law 722, CA the court emphasised the duty to see all relevant parties and, whenever possible, the child with each of the protagonists.

[2.243[7]]

Duty of local authority or officer of the Service to comply (s 7(5))—In theory, there is no room for argument once the court has made its request for a report; the officer of the Service or local authority chosen has a duty to report as requested. The time for representations about who should be responsible for the report and what it is feasible for it to cover is therefore before the report is commissioned. The problem is that this depends upon a representative of Cafcass or the local authority being on hand at the relevant time which will not always be the case. In the event that the court's request does cause difficulties, contact should be made with the court explaining the nature of the obstacle and asking for directions to be given under FPR 2010, r 12.12. If the difficulty is an inability to meet the time-limits set down by the court or, in default of any time-limit set by the court, by the rules (see FPR 2010, r 16.33 and PD16A), the court will have to balance the prejudice that there is likely to be to the welfare of the child (see s 1(2)) against the desirability of obtaining a relevant report, the child's welfare being the paramount consideration (*Re H (Minors) (Welfare Reports)* [1990] 2 FLR 172, CA). The power to vary time-limits derives from FPR 2010, rr 4.1(3), 12.12(2) and 12.13. Normally, the appropriate course is to find out from Cafcass how long is required for the report and to fix a date in the light of that information so that the report will be available for the fixed hearing (*B v B (Minors) (Interviews and Listing Arrangements)* [1994] 2 FLR 489, CA; *Re A and B (Minors) (No 2)* [1995] 1 FLR 351, FD). In a case which is clearly going to be contested, it is desirable that the direction for a welfare report should, as was pointed out in *Re A and B (Minors) (No 2)*, be given in the context of overall directions for the filing of evidence and a fixed date for final determination.

Statements and evidence otherwise inadmissible (s 7(4))—The welfare report and the children and family reporter's evidence will often contain reports of conversations that he has had with third parties (eg relatives, neighbours and teachers) and with the child, and may also contain other statements traditionally viewed as inadmissible. Section 7(4) is a very broad provision enabling the court to disregard all rules of evidence and to take into account any statement or evidence which is relevant to the question in issue. Plainly certain statements or evidence will be more influential than others and the court must decide what weight is appropriate to attach to each (*R v B County Council ex parte P* [1991] 1 FLR 470, CA; see also the Children (Admissibility of Hearsay Evidence) Order 1993 in Part IV). Where the children and family reporter includes hearsay in his report, he should identify it as such, give the source of it and give any reasons he has for agreeing with any opinions he passes on (*Thompson v Thompson* [1986] 1 FLR 212, CA). Although it is always difficult for a party to deal with hearsay evidence that is prejudicial to him, this practice will at least alert the court to the deficiencies of the evidence and enable the party who feels himself prejudiced to interview the original author of the statement or opinion with a view to calling him to give evidence if he has been inaccurately reported. It appears that, in accordance with s 7(4)(b), once a particular matter has found its way into the welfare report, the court may entertain any relevant evidence with regard to it from any witness (not just the parties and the children and family reporter) with no restrictions as to hearsay.

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Guarantees of confidentiality not appropriate—A children and family reporter cannot guarantee confidentiality to a person who makes allegations to him while he is investigating the circumstances of the case. It is for the judge to decide whether or not evidence must be disclosed to the parties (*Re G (Minors) (Welfare Report: Disclosure)* [1993] 2 FLR 293, CA). The principles applicable are set out in **Submission of evidence** under FPR 2010, r 12.12.

[2.243[8]]

Court differing with recommendation in welfare report—The final decision as to any question in issue rests with the court, but the welfare report and any recommendations that the children and family reporter makes must be taken into account (*Re P (Custody of Children: Split Custody Order)* [1991] 1 FLR 337, CA). If the court decides not to follow the recommendation of the children and family reporter, it must give clear and adequate reasons for doing so (see review of authorities in *Y v E (Reasons for Departing from Cafcass Recommendation)* [2025] EWHC 2437 at [20]–[22]).

In *Re CB (Access: Attendance of Court Welfare Officer)* [1995] 1 FLR 622, CA (a case concerning the risk of sexual abuse of a child by a Sch 1 offender), it was said to be a defective exercise of discretion for a judge to reject clear-cut recommendations and warnings in a children and family reporter's report without receiving further assistance from the officer by way of oral evidence. However, in *Re C (Section 8 Order: Court Welfare Officer)* [1995] 1 FLR 617, CA, the Court of Appeal pointed out that *Re CB* is not a hard and fast rule of law. Whether to adjourn a case so that the children and family reporter can attend is a matter for the judge's discretion and he must carry out the balancing act which is required by the paramount consideration of the child's welfare and the provisions as to delay in s 1(2). Many factors will have to be taken into account, including how much further assistance the children and family reporter can give, what his attendance is likely to change and the extent to which it would be safe and proper to depart from any recommendations made.

Position of children and family reporter in court—See under [CJCSA 2000, s 16](#).

Independent welfare reports—The *Family Justice Review Final Report* recommends that independent social workers should only be used exceptionally (paras 3.131, 3.132).